

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

COMPLAINANT’S MOTION TO
COMPEL DISCOVERY FROM
RESPONDENT CMA CGM S.A.

Complainant Intermodal Motor Carriers Conference, American Trucking Associations, Inc. (“IMCC”) moves to compel production of non-privileged, non-redacted documents from Respondent CMA CGA S.A. (“CMA”) in response to Requests for Production. 46 C.F.R. §502.150. Undersigned counsel has met and conferred with counsel for CMA, but unfortunately these efforts have been unsuccessful and the parties are at impasse. In the interests of “proceed[ing] expeditiously,” Scheduling Order, Dkt. 40, at 2, IMCC now brings the dispute to the Presiding Officer and requests that this Motion be granted.

I. ARGUMENT

In response to IMCC's Requests for Production, CMA produced documents with non-privileged portions, such as pricing and other business terms, redacted. This redacted information is necessary for Complainant IMCC to present, and for the Presiding Officer to determine, whether Respondents' business practices are unreasonable under the Shipping Act.

Undersigned counsel promptly contacted CMA's counsel to request unredacted copies. Ex.¹ 1 (April 6, 2021, Golden Email). IMCC's counsel received no response and so contacted CMA's counsel once more. Ex. 2 (June 28, 2021, Golden Email). Several weeks after this follow-up request, CMA made another production, doubling down on the number of redacted documents. *See* Golden Decl. ¶ 8. CMA last produced documents on July 30, 2021, and IMCC awaits the rest of CMA's production. Nearly four months after Complainant's first email regarding the redactions at issue, counsel for CMA replied to schedule a telephonic meet and confer. Ex. 3 (August 2, 2021, Raleigh Email).²

At this meet and confer, CMA's counsel related its client's concerns that Complainant's expert could use the pricing information in other engagements. *See* Golden Decl. ¶ 10. The Confidentiality Stipulation provides that "Confidential Information disclosed by a Producing Party shall be used solely in this Proceeding, and shall not be used by the Receiving Party for any business, commercial, competitive, personal, or other purpose" and that "Parties shall either destroy all Proceeding Material designated Confidential Information or return them to the original Producing Party . . . within forty-five (45) days of the final conclusion of this Proceeding

¹ References to "Ex." or "Exs." are to the Declaration of David Golden in Support of Complainant's Motion to Compel, dated August 20, 2021.

² Should the Presiding Officer wish to review the redacted documents, the Parties will submit them under seal.

”). See Ex. 4 (Second Am. J. Conf. Stip.) at 3, 6. Moreover, persons receiving Confidential Information must agree to Appendix A, which forbids any use of Confidential Information outside this proceeding for any purpose in any form. These kinds of redactions are not authorized under the Confidentiality Stipulation—to which *CMA has agreed*—and are unnecessary given that each document is protected as Confidential Information under the Confidentiality Stipulation. CMA even designated these documents at the highest level of Confidential Information, Outside Counsel Eyes Only (“OCEO”). Golden Decl. ¶¶ 5, 7; see Dkt. 55. No other party or nonparty has maintained such redactions.

It appears that the redacted information includes rates for Merchant and Carrier Haulage and other terms that are essential to analyze the unfair practices at issue in this case. See Compl., Dkt. 1, ¶¶3(f)-4, 47-49. CMA’s redactions thus frustrate attempts to discover critical information at the heart of IMCC’s claims as to CMA. The information in these documents is indisputably relevant to the matter, and considering the Confidentiality Stipulation, CMA has no reason to withhold unredacted versions. If CMA believes it has legitimate concerns regarding confidentiality, it can seek a protective order to limit dissemination of discovery materials under FMC Rule 502.141(j) — rather than opposing discovery of necessary information.

This motion should be granted.

II. INITIAL ORDER PARAGRAPH 11 STATEMENT

The parties set forth below, in accordance with paragraph 11 of the Initial Order in this proceeding, the Request at issue, Complainant’s position, and CMA’s response:

Request for Production No. 13: All agreements and contracts, including all addenda thereto and pricing terms thereof, with IEPs regarding the provision of chassis for transport of Your cargo containers; and also contracts with, or rules or practices, including all addenda thereto and pricing terms thereof, affecting railroads and marine or inland intermodal terminal operators relating to the provision of or assignment of chassis.

- Complainant's Summary: This motion pertains to fourteen redacted documents produced by CMA. *See* Golden Decl. ¶¶ 5, 8. The redactions appear to concern certain pricing and other leasing terms for chassis. *Id.* Undersigned counsel contacted counsel for CMA via email regarding the deficiency, and they conferred telephonically. *See* Golden Decl. ¶¶ 6-9; Exs. 1-3. CMA's concern appears to be that Complainant's expert could use the pricing information in other engagements, in violation of the Confidentiality Stipulation. *Id.* ¶ 10. However, CMA has not indicated why the protections afforded by the Confidentiality Stipulation entered between the parties are insufficient. *Id.*
- Relevance of the Request: CMA produced these documents because they are responsive to Requests for Production, including RFP No. 13. This case requires inquiry into the contractual agreements entered between Respondents and chassis providers, to determine whether the Respondents have engaged in unreasonable and unjust practices—including those that infringe on a motor carrier's choice of chassis provider, and cause intermodal equipment providers to undercharge the ocean carrier for Carrier Haulage movements while overcharging motor carriers for chassis usage for Merchan Haulage. *See, e.g.,* Compl., Dkt. 1, ¶¶3-5. Without the unredacted portions of these documents, including the price terms, the record as to these contractual provisions and the negotiations thereof is incomprehensible for IMCC and the Presiding Officer.
- CMA's Response:

III. CONCLUSION

IMCC respectfully requests that the Presiding Officer issue an Order Compelling CMA to reproduce the 14 documents bearing the Bates ranges CMA0000015-CMA0000081, CMA0000110-CMA0000115, CMA0000387, and CMA0000500-CMA0000501 with non-privileged information unredacted.

Dated: August 20, 2021

/s/ David Golden

David Golden
Constantine Cannon LLP

CERTIFICATE OF SERVICE

I certify that, on August 20, 2021, a true and current copy of the foregoing Complainant's Motion to Compel was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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Dated: August 20, 2021

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